

Dinesh S/O Ram Babu B/C Chhipa vs State Of Rajasthan on 24 January, 2020

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Miscellaneous (Petition) No. 7572/2018

Dinesh S/o Ram Babu B/c Chhipa, R/o Sitabadi Colony,
Sanganer, Tehsil Sanganer, District Jaipur, Raj.

----Petitioner

Versus

1. State Of Rajasthan, Through Pp.
2. Sunita @ Deepika D/o Ram Kishore B/c Chhipi, R/o
Behind Mohan Gas Godown, Tijara Phatak, Alwar, Raj.

----Respondents

For Petitioner(s) : Mr. Rakesh Kumar
For Respondent(s) : Mr. Sher Singh Mehla, PP

HON'BLE MR. JUSTICE SANJEEV PRAKASH SHARMA Judgment / Order 24/01/2020 The petitioner by way of this petition has prayed for quashing the proceedings which are have been initiated on the complaint made by his wife which is pending before the Learned Additional Civil Judge & Judicial Magistrate No.4, Alwar(Rajasthan) u/s 498A, 341 & 323 IPC.

Learned counsel has invited attention of this court to the order passed by this court dated 21.12.2016 in Civil Misc.Appeal No. 4064/2011 wherein this court has i accepted the settlement arrived at between the parties i.e. husband and his estranged wife Smt. Sunita @ Deepika, on the following conditions;

"(a) The parties have agreed to withdraw all the pending cases qua each other criminal or civil. In case appearance of either party is necessary before any Court of law; they have agreed to put in appearance as and when called upon to do so.

(2 of 3) [CRLMP-7572/2018]

(b) The appellant husband has agreed to pay for maintenance of his son as per orders that may be made by the jurisdictional Court in pending proceedings under Section 125 Cr. P. C. including the due amount.

(c) The Statutory period of six months of separation as contemplated under the Act of 1955, is prayed to be exempted for both the parties have been living separate for more than last eleven years.

(d) The appellant has agreed to pay as onetime alimony of Rs. 5,00,000/- (Rupees Five Lac Only), to the non-appellant wife."

One of the conditions of settlement was that parties have agreed to withdraw all the pending cases qua each other criminal or civil. In case appearance of either party is necessary before any court of law; they have agreed to put in appearance as and when called upon to do so.

Accepting the aforesaid settlement, the court proceeded to quash the said judgment dated 13.7.2011 and dissolved the marriage by mutual consent u/s 13(B) of the Hindu Marriage Act, 1955 and amount of alimony was allowed to a sum of Rs. 5,00,000/- (Rupees Five Lacs Only) in favour of non petitioner No.2-Smt. Sunita.

Learned counsel for the petitioner submits that after the marriage has been dissolved and alimony paid, the criminal proceedings which were pending before the concerned Learned Additional Civil Judge & Judicial Magistrate No.4, Alwar(Rajasthan) ought to be closed as per the settlement and the compromise which has been arrived at between the parties. However, as the learned court below has insisted for appearance of the respondent no.2 who has failed to appear, arrest warrants have been issued against the petitioner and he is being forced to under go the criminal proceedings.

(3 of 3)

This court has issued notice and inspite of

respondent no.2 has not put in appearance.

Learned PP does not object that the settlement has been accepted by this court in civil appeal.

Keeping in view the law laid down in the case of Gian Singh Vs. State of Punjab & Anr. Reported in 2012(10)SCC303, and the fact that settlement has also been accepted in the civil proceedings by this court and dissolution order has been passed by this court, the settlement will apply to all the pending cases civil & criminal also and even if the respondent no.2 has not presented herself before the concerned court, this courts below cannot ignore the settlement approved by the High Court.

Accordingly, this court is of the view that for achieving the ends of justice, the proceedings initiated u/s 498A, 341 & 323 IPC which have been kept pending before the court of Learned Additional Civil Judge & Judicial Magistrate No.4, Alwar(Rajasthan) deserves to be quashed, in terms of the amicable settlement noticed by this court in S.B. Civil Misc.Appeal No.4064/2011 dated 21.12.2016 and are accordingly quashed.

This criminal misc. petition is allowed on the aforesaid terms. All pending applications also stand disposed of.

